

Commercial General Liability Insurance Policy

COMMERCIAL GENERAL LIABILITY INSURANCE POLICY

Policy Number: CGL-2024-78412
Insurer: NorthStar Insurance Group
Named Insured: Acme Manufacturing Corp.
Policy Period: January 1, 2024 - January 1, 2025

SECTION I - COVERAGE AGREEMENTS

A. BODILY INJURY AND PROPERTY DAMAGE LIABILITY

The Insurer will pay those sums that the Insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage."

B. PERSONAL AND ADVERTISING INJURY LIABILITY

The Insurer will pay those sums that the Insured becomes legally obligated to pay as damages because of "personal and advertising injury."

SECTION II - EXCLUSIONS

THIS INSURANCE DOES NOT APPLY TO:

2.1 Contractual Liability

"Bodily injury" or "property damage" for which the Insured is obligated to pay as damages by reason of the assumption of liability in a contract or agreement.

2.2 Pollution Exclusion

"Bodily injury" or "property damage" arising out of the actual, alleged, or threatened discharge, dispersal, seepage, migration, release or escape of any pollutant or irritant.

2.3 Cyber Exclusion

Any loss, damage, claim, or expense arising directly or indirectly from:

- a) The use of any computer, computer system, computer software program, malicious code, computer virus, or hacking activity;
- b) Unauthorized access to or disclosure of any data or information;
- c) Any act of cyber extortion, ransomware, or denial of service attack.

This exclusion applies regardless of any other cause or event that contributes concurrently or in any sequence to the loss.

2.4 Employment Practices Exclusion

"Bodily injury" to any employee of the Insured arising out of or in the course of employment by the Insured. This exclusion applies to the Insured.

- a) Refusal to employ;
- b) Wrongful termination;
- c) Harassment, humiliation, or discrimination;
- d) Failure to promote or demotion.

2.5 Product Recall Exclusion

Any loss, cost, or expense incurred by the Insured or others due to the withdrawal, recall, inspection, repair, replacement, adjustment, or other action taken with respect to any product.

SECTION III - CONDITIONS

3.1 Duty to Cooperate

The Insured shall cooperate with the Insurer in the investigation, settlement, or defense of any claim or suit. Failure to cooperate may result in denial of coverage.

3.2 Notice of Occurrence

The Insured shall give the Insurer written notice of any "occurrence" as soon as practicable, but no later than 60 days after the end of

3.3 Arbitration

Any dispute arising out of or relating to this Policy shall be submitted to binding arbitration administered by the American Arbitration

3.4 Records and Access

The Insured shall maintain accurate books and records in accordance with GAAP. The Insurer shall have the right to inspect the Insured's

SECTION IV - DEFINITIONS

4.1 "Bodily injury" means bodily injury, sickness, or disease sustained by a person, including death resulting from any of these at any time

4.2 "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful condition

4.3 "Pollutants" means any solid, liquid, gaseous, or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis,

4.4 "Insured contract" means any contract under which the Insured assumes the tort liability of another party to pay for "bodily injury

ENDORSEMENTS

Endorsement 1 - Cyber Liability Exclusion Amendment

The Cyber Exclusion (Section 2.3) is amended to include a limited carve-back for losses arising from a non-cyber event that follows

Endorsement 2 - Waiver of Subrogation

The Insurer waives any right of subrogation against the Insured's subsidiaries and affiliated entities.